

Miller Criminal Appeal - Drug Possession

Defendant John Miller appeals his conviction for possession of controlled substances with intent to distribute. The defendant was convicted after a jury trial and sentenced to five years imprisonment. On appeal, the defendant raises three issues: sufficiency of evidence, improper admission of evidence, and ineffective assistance of counsel. The defendant argues the evidence was insufficient to prove intent to distribute, as the quantity of drugs found was consistent with personal use. The defendant also challenges the admission of evidence obtained during a warrantless search, arguing the search violated his Fourth Amendment rights. The State responds that the evidence was sufficient, including the quantity of drugs, packaging materials, scales, and large amounts of cash found in the defendant's possession. The State argues the search was lawful as incident to a valid arrest based on probable cause. After reviewing the record, this court finds the evidence sufficient to support the conviction. The warrantless search was justified as incident to arrest. However, the court finds merit in the ineffective assistance of counsel claim, as trial counsel failed to object to prejudicial testimony and did not present available exculpatory evidence. The conviction is reversed and the case is remanded for a new trial.